

		notice of the order to show cause, and notice of this ruling. Counsel shall give notice of this ruling in the manner ordered by the court.
7	Bello vs. Thapa 30-2025-01514784	<u>Motion for Leave to Amend</u> Plaintiff Rigoberto Perez Bello's Motion for Leave to File First Amended Complaint is GRANTED. Plaintiffs Rigoberto Perez Bello and Patricia Grace shall file and serve the First Amended Complaint – Personal Injury, Property Damages, Wrongful Death, attached as Exhibit A to the Declaration of Dmitri N. Chtyrev, Esq. in Support of Motion for Leave to File First Amended Complaint, within 30 days of this ruling. <u>Pending Motion</u> Plaintiff Rigoberto Perez Bello moves for leave to file the First Amended Complaint – Personal Injury, Property Damages, Wrongful Death (First Amended Complaint). <u>Standard for Leave to Amend</u> The Civil Procedure Code provides that: The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code. (Code Civ. Proc., § 473, subd. (a)(1).) Leave to amend should be granted liberally at all stages of the proceedings in order to accomplish

		substantial justice for both parties and to resolve cases on their merits. (See <i>Hirsa v. Superior Court</i> (1981) 118 Cal.App.3d 486, 488-489; <i>IMO Development Corp. v. Dow Corning</i> (1982) 135 Cal.App.3d 451, 461.) As the Court of Appeal has explained: [T]rial courts should be guided by two general principles: (1) whether facts or legal theories are being changed and (2) whether the opposing party will be prejudiced by the proposed amendment. Frequently, each principle represents a different side of the same coin: If new facts are being alleged, prejudice may easily result because of the inability of the other party to investigate the validity of the factual allegations while engaged in trial or to call rebuttal witnesses. If the same set of facts supports merely a different theory – for example, an easement as opposed to a fee – no prejudice can result. (<i>City of Stanton v. Cox</i> (1989) 207 Cal.App.3d 1557, 1563.) With respect to the first requirement, “[t]he basic rule applicable to amendments to conform to proof is that the amended pleading must be based upon the same general set of facts as those upon which the cause of action or defense as originally pleaded was grounded.” (<i>Union Bank v. Wendland</i> (1976) 54 Cal.App.3d 393, 400-401.) In other words, “[t]he power to permit amendments is interpreted very liberally as long as the plaintiff does not attempt to state facts which give rise to a wholly distinct and different legal obligation against the defendant.” (<i>Herrera v. Superior Court</i> (1984) 158 Cal.App.3d 255, 259.) With respect to the second requirement, prejudice that may support denying amendment includes “delay in trial, loss of critical evidence, or added costs of preparation.” (<i>Solit v. Tokai Bank, Ltd. New York Branch</i> (1999) 68 Cal.App.4th 1435, 1448.) The trial court has wide discretion in determining whether to allow amendment, but “the appropriate exercise of that discretion requires the trial court to consider a number of factors: ‘including the conduct of the moving
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		party and the belated presentation of the amendment.'" (<i>Leader v. Health Ind. of America, Inc.</i> (2001) 89 Cal.App.4th 603, 613, quoting <i>Bedolla v. Logan & Frazer</i> (1975) 52 Cal.App.3d 118, 135-136, italics original.) However, it is "an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment." (<i>Kittredge Sports Co. v. Superior Court</i> (1989) 213 Cal.App.3d 1045, 1048; see also <i>Morgan v. Superior Court</i> (1959) 172 Cal.App.2d 527, 530 ["If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend"], citations and quotations omitted.) It is also an abuse of discretion to refuse amendment where that "results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense." (<i>Morgan v. Superior Court, supra</i>, 172 Cal.App.2d at p. 530.) This is true even if leave to amend is sought as late as the time of trial or even during trial. (See <i>Higgins v. Del Faro</i> (1981) 123 Cal.App.3d 558, 564-565; <i>Rainer v. Community Memorial Hosp.</i> (1971) 18 Cal.App.3d 240, 251-256.) Thus, "[i]n the furtherance of justice, trial courts may allow amendments to pleadings and if necessary, postpone trial." (<i>Honig v. Financial Corp. of America</i> (1992) 6 Cal.App.4th 960, 965.) Here, Plaintiff seeks leave to amend the Complaint in order to add Patricia Garcia as an additional plaintiff. Because the First Amended Complaint only adds an additional party, it is based on the same general set of facts as the original Complaint. Thus, Plaintiff does not seek to change the facts or theories of the case. Further, Plaintiff states that Patricia Grace was inadvertently omitted from the original Complaint only through attorney inadvertence. (See Decl. of Dmitri N. Chytyrev, Esq. in Supp. of Mot. for Leave to File First Amend. Compl., ¶¶ 4, 6.) Further, there was no undue delay in attempting to correct this oversight. Here, Plaintiff's Counsel contacted Defendant's Counsel about filing the
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		First Amended Complaint about 3 ½ months after filing the Complaint. (See <i>id.</i>, ¶ 9.) When Defendant refused to stipulate to amend the original Complaint, Plaintiff then moved to amend about 5 months after filing the original Complaint. (See ROA #2, #33.) Defendant contends that Defendant will be prejudiced by the amendment because some discovery has been completed and may need to be redone in light of the amendment. However, this is an issue that arises any time there is an amendment to the pleadings. It is not the type of undue prejudice sufficient to overcome the policy of liberality in allowing amendments, even up to and during trial. Further, trial is not set until March 15, 2027, so that all parties will have sufficient time to conduct discovery and prepare for trial. Defendant also argues that the amendment is futile because the statute of limitations has run on Patricia Grace's claims. Plaintiff responds that the added claims will relate back to the original Complaint. While Defendant disputes this, "the preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings." (<i>Kittredge Sports Co. v. Superior Court</i> (1989) 213 Cal.App.3d 1045, 1048.) Thus, given the policy of liberality in allowing amendment of pleadings, the fact that the amendment will not change the basic facts or theory of the case, and the lack of prejudice to Defendant, the court will grant the motion for leave to amend. Plaintiff shall give notice of this ruling.
8	Solter vs. Capsavage	<u>Motion to Expunge <i>Lis Pendens</i></u> Cross-Complainants Sighora V. Solter's and Shirley Capsavage's Motion for an Order

	30-2023-01346312	Expunging the Recorded Notice of Pendency of Action (<i>Lis Pendens</i>) Recorded on November 20, 2023 Pursuant to CCP 405.30 et seq. is GRANTED. Plaintiff and Cross-Defendant Frederik Solter is ORDERED to pay Cross-Complainants Sigthora V. Solter and Shirley Capsavage reasonable attorney's fees in the amount of \$1,750 (5 hours x \$350 per hour) within 30 days of service of the notice of ruling. <u>Pending Motion</u> Cross-Complainants Sigthora V. Solter and Shirley Capsavage move to expunge the Notice of Pendency of Action recorded on November 20, 2023 (<i>Lis Pendens</i>) and for an award of attorney's fees in the amount of \$3,850. <u>Expunging <i>Lis Pendens</i></u> The Civil Procedure Code contains procedures to expunge <i>Lis Pendens</i>. Specifically, Civil Procedure Code section 405.30 states that: At any time after notice of pendency of action has been recorded, any party, or any nonparty with an interest in the real property affected thereby, may apply to the court in which the action is pending to expunge the notice (Code Civ. Proc., § 405.30.) The party seeking to expunge the <i>lis pendens</i> may file evidence or declarations with the motion, or "[t]he court may permit evidence to be received in the form of oral testimony." (<i>Ibid.</i>) The court also "may make any orders it deems just to provide for discovery by any party affected by a motion to expunge the notice." (<i>Ibid.</i>) The court shall grant a motion to expunge if either: (1) the pleading upon which the <i>lis pendens</i> is based does not contain a real property claim; or (2) the claimant has not established by a preponderance of the evidence the probable validity of the real property claim. (Civil Proc. Code, §§ 405.31, 405.32.) The court may not order that an undertaking be
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		given as a condition of expunging the notice “where the court finds the pleading does not contain a real property claim” or “if the court finds the claimant has not established the probable validity of the real property claim.” (Civil Proc. Code, §§ 405.31, 405.32.) Where the court finds that the real property claim has probable validity, “but [that] adequate relief can be secured to the claimant by the giving of an undertaking,” then the court shall grant the expungement order, “conditioned upon the giving of the undertaking of such nature and in such amount as will indemnify the claimant for all damages proximately resulting from the expungement which the claimant may incur if the claimant prevails upon the real property claim.” (Code Civ. Proc., § 405.33; see <i>Kirkeby v. Superior Court</i> (2004) 33 Cal.4th 642, 651.) The burden of proof rests with the party responsible for filing the <i>lis pendens</i>. (See <i>Amalgamated Bank v. Super. Court</i> (2007) 149 Cal.App.4th 1003, 1007; <i>Shah v. McMahon</i> (2007) 148 Cal.App.4th 526, 529.) Here, Plaintiff and Cross-Defendant Frederik Solter filed a Notice of Pendency of Action (<i>Lis Pendens</i>) in this matter on November 20, 2023. Here, Cross-Complainants have established that on July 15, 2025, Plaintiff/Cross-Defendant dismissed the entire complaint upon which the <i>Lis Pendens</i> was based. (See ROA #120.) The matter then proceeded to trial on the Cross-Complainant’s Cross-Complaint only and Cross-Complainants received a judgment in their favor. (See ROA #217.) Plaintiff/Cross-Defendant has the burden of establishing that the pleading upon which the <i>Lis Pendens</i> is based contains a real property claim and that the preponderance of the evidence shows the probable validity of the real property claim. Plaintiff/Cross-Defendant failed to file an opposition or respond to the motion. Thus, he has waived any arguments regarding this issue. (See <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue]; see <i>DuPont Merck Pharmaceutical Co. v. Superior</i>
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		<i>Court</i> (2000) 78 Cal.App.4th 562, 566 [holding that failure to challenge contention in brief results in the concession on that issue].) In any case, Plaintiff/Cross-Defendant cannot meet his burden because he has dismissed his Complaint and Cross-Complainants obtained a judgment on the Cross-Complaint. Therefore, the court will grant the motion to expunge. <u>Attorneys' Fees</u> Civil Procedure Code section 405.38 provides: The court shall direct that the party prevailing on any motion [to expunge or record <i>lis pendens</i>] be awarded the reasonable attorney's fees and costs of making or opposing the motion unless the court finds that the other party acted with substantial justification or that other circumstances make the imposition of attorney's fees and costs unjust. (Civil Proc. Code, § 405.38.) "This is the same standard applicable to rulings on discovery motions." (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2021) ¶ 9:463; see <i>Castro v. Superior Court</i> (2004) 116 Cal.App.4th 1010, 1023, fn. 13.) As the Court of Appeal has explained: Section 405.38 changed the law by <i>requiring</i> (as opposed to merely authorizing) a court to award attorney's fees and costs to the party prevailing on a motion to expunge, unless the other party acted with substantial justification or other circumstances would make such an award unjust. The Legislature intended these revisions to discourage abuse and make it easier to remove a recorded <i>lis pendens</i> before trial. (<i>Shoker v. Superior Court of Alameda County</i> (2022) 81 Cal.App.5th 271, 280–281, italics original; see <i>J & A Mash & Barrel, LLC v. Superior Court</i> (2022) 74 Cal.App.5th 1, 42, ["The purpose
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		underlying section 405.38 is to curtail misuse of the <i>lis pendens</i> procedure.”].) As noted above, Plaintiff/Cross-Defendant failed to file an opposition or respond to the motion and therefore, has not shown that he acted with substantial justification or that other circumstances make the imposition of attorney’s fees unjust. However, Cross-Complainants’ request for attorney’s fees includes time for reviewing the opposition and preparing a reply. Cross-Complainants’ Counsel did not have to engage in these tasks as Plaintiff/Cross-Defendant did not file an opposition. The court will reduce the amount of attorney’s fees accordingly. Cross-Complainants shall give notice of this ruling.
9	Kim vs. Williams 30-2023-01317262	<u>Motion for Summary Judgment and/or Summary Adjudication</u> There is no written tentative ruling at this time. The court will hear from the parties or their counsel at hearing on this matter.
10	Sunday vs. Kazweeny 30-2025-01476760	<u>Demurrers</u> Defendant Lightspeed Escrow, Inc.’s Demurrer to Plaintiffs’ First Amended Complaint, Code of Civil Procedure § 430.41 is OVERRULED as to the 4th Cause of Action, and SUSTAINED with 15 days leave to amend as to the 1st, 2nd, 3rd, 5th, 6th, and 7th Causes of Action. Defendants Ahmed Kazweeny’s and Reeland Investments LLC’s Demurrer to Plaintiffs’ First [sic] Complaint, Code of Civil Procedure § 430.41 is OVERRULED as to the 1st and 4th Causes of Action, and SUSTAINED with 15 days leave to amend as to the 2nd, 3rd, 5th, 6th, and 7th Causes of Action. If Plaintiffs Karen Sunday & Associates, Inc. and Karen Sunday do not amend the First Amended